

24NNCV02007 24NNCV02007

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24NNCV02007 Hearing Date: August 19, 2026 Dept: T

G.E.

Construction Contractors, Inc. vs. Humbert Construction, Inc.

Motion

to Enforce Settlement Payment

Moving Party: Plaintiff

G.E. Construction Contractors, Inc.

Responding Party: Unopposed

Tentative Ruling: Grant

RULING

On November 5, 2025, Plaintiff G.E. Construction Contractors, Inc.

("Plaintiff") filed a notice of settlement, having entered into a settlement

agreement on October 31, 2025, for the payment of \$36,000.00 in three equal

installments by Defendant Humbert Construction, Inc. ("Defendant") with the

final installment payment due on May 1, 2026. On November 14, 2025, by stipulation of the

parties, the Court entered an order dismissing the action without prejudice and

retaining jurisdiction over the matter pursuant to Code of Civil Procedure

section 664.6. Following entry of this stipulation and

order, the parties agreed to amend the settlement agreement to require

Defendant to pay an increased, final installment amount of \$12,600.00 by June

1, 2026.

After

Defendant failed to make the final installment payment, Plaintiff provided Defendant with notice of this default. Plaintiff now moves to enforce the amended terms of the settlement agreement pursuant to Code of Civil Procedure section 664.6. Under Section 664.6(a), "if parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.¿ If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." A writing is signed by a "party" if signed by any of the following: "(1) The party; (2) An attorney who represents the party; or (3) If the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's behalf." (Code Civ. Proc. § 664.6, subd. (b).) An agreement to settle under section 664.6 cannot be enforced unless it is signed by all of the litigating parties to the agreement. (J.B.B. Investment Partners, Ltd. v. Fair¿(2014) 232 Cal.App.4th 974, 985.)

As both the underlying settlement agreement and subsequent amendment were executed by Fernando Arteaga on behalf of Defendant in his capacity as its President, the Court finds that an enforceable settlement agreement and amendment to said agreement was entered by the parties. (See Kollias Decl., Exhs. 1, 2.) The Court also finds that Defendant failed to make the final payment, the Plaintiff gave notice of the default, and that Defendant failed to timely cure the default. Based on the foregoing, the motion to enforce is granted. In addition, as the settlement agreement permits recovery of attorney fees under these circumstances, the Court grants the requested fees in the amount of \$1,402.50. (Khavarian Enterprises, Inc. v. Commline, Inc. (2013) 216 CA4th 310, 320.)

Thus, the Court shall enter judgment against Defendant in the total amount of \$14,002.50.

Plaintiff shall file a proposed judgment and give notice of this ruling. The Court sets an OSC re Filing of Proposed Judgment for August 28, 2026, at 8:30 a.m. The OSC will go off calendar if a proposed judgment is filed before that date.